

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Judith Le	Team: Squad #08	CCRB Case #: 201703855	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 05/10/2017 8:20 PM	Location of Incident: 284 Stratford Road (in front of fire hydrant)	18 Mo. SOL 11/10/2018	Precinct: 70		
Date/Time CV Reported Mon, 05/15/2017 2:45 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Mon, 05/15/2017 2:45 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Christian Lopez	24864	955083	070 PCT
2. POM Estharlin Lopez	17248	959766	070 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM David Nunez	19381	959850	070 PCT
2. POM Felix Melendez	21834	959813	070 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Christian Lopez	Abuse: Police Officer Christian Lopez stopped § 87(2)(b)	A . Unsubstantiated
B . POM Estharlin Lopez	Abuse: Police Officer Estharlin Lopez stopped § 87(2)(b)	B . Unsubstantiated
C . POM Christian Lopez	Abuse: Christian Lopez searched the vehicle in which § 87(2)(b) was an occupant.	C . Exonerated
D . POM Estharlin Lopez	Discourtesy: Police Officer Estharlin Lopez acted discourteously toward § 87(2)(b)	D . Unsubstantiated
E . POM Christian Lopez	Abuse: Police Officer Christian Lopez improperly issued summonses to § 87(2)(b)	E . Substantiated

Case Summary

On May 10, 2017 at approximately 6:00 p.m., § 87(2)(b) a taxi driver, stopped his vehicle next to a fire hydrant at 284 Stratford Road in Brooklyn. His engine was on when PO Christian Lopez and PO Estharlin Lopez of the 70th Precinct approached him (**Allegations A and B**). PO Christian Lopez asked § 87(2)(b) several times for his ID, but § 87(2)(b) refused to comply until PO Christian Lopez told him why he had been stopped. Shortly thereafter, PO Christian Lopez reached into § 87(2)(b) window, grabbed his wallet and pulled out his license (**Allegation C**). PO Christian Lopez then returned to his car, while PO Estharlin Lopez stood outside the RMP, allegedly flicking his flashlight into § 87(2)(b) eyes (**Allegation D**). § 87(2)(b) was subsequently issued two summonses: one for parking in front of a fire hydrant and the other for disorderly conduct (**Allegation E**).

There is no video footage capturing this incident.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined mediation § 87(2)(b).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- As of June 28, 2017, a notice of claim has not been filed by § 87(2)(b) (see Board Review #3).

Civilian and Officer CCRB Histories

- PO Christian Lopez has been a Member of Service for three years and has been a subject in one previous case, involving an allegation of physical force. § 87(2)(g)
[REDACTED]
- PO Estharlin Lopez has been a Member of Service for one year and has not been a subject in any previous CCRB complaints (see Board Review #5).
- This is § 87(2)(b) first CCRB complaint. § 87(2)(g), § 87(2)(b)
[REDACTED]

Findings and Recommendations

Allegation A - Abuse: Police Officer Christian Lopez stopped § 87(2)(b)

Allegation B - Abuse: Police Officer Estharlin Lopez stopped § 87(2)(b)

Allegation C - Abuse: Christian Lopez searched the vehicle in which § 87(2)(b) was an occupant.

Allegation D - Discourtesy: Police Officer Estharlin Lopez acted discourteously toward

§ 87(2)(b)

Allegation E - Abuse: Police Officer Christian Lopez improperly issued summonses to

§ 87(2)(b)

It is undisputed that PO Christian Lopez and PO Estharlin Lopez stopped § 87(2)(b) whose car was idling in front of a fire hydrant. § 87(2)(g).

A Google satellite image of 284 Stratford Road in Brooklyn (see Board Review #7) shows a residential neighborhood. There appears to be a No Parking sign on the lamppost. The fire hydrant is not visible from the photo.

§ 87(2)(b) (see Board Review #8) noted in his testimony that he is a licensed chauffeur, and after dropping off some clients, had parked his car in front of a fire hydrant while he was waiting for his next job. His engine was running and his car was idle. § 87(2)(b) was reading emails on his phone. In a follow-up phone statement (see Board Review #9), § 87(2)(b) also noted that his license plate starts with a T, to signify Taxi/Limousine. § 87(2)(b) stated (see Board Review #8) that PO Christian Lopez, whose name § 87(2)(b) obtained from his summons, and his partner, identified through investigation as PO Estharlin Lopez, pulled up next to § 87(2)(b) and PO Christian Lopez asked him if he was good. § 87(2)(b) did not know what was going on and was trying to figure out if the officers were trying to provoke him. In a normal tone of voice, § 87(2)(b) asked PO Christian Lopez what the problem was and PO Christian Lopez did not respond to his question. § 87(2)(b) stated that he felt like PO Christian Lopez was trying to get him to leave, but did not directly ask him to do so. Shortly thereafter PO Christian Lopez and PO Estharlin Lopez got out of their car.

At the time, § 87(2)(b) wallet was in his armrest, but when he saw the officers approaching, he decided to move it to the cup holder for easier access. PO Christian Lopez approached § 87(2)(b) driver side and PO Estharlin Lopez went to the passenger side. PO Christian Lopez asked § 87(2)(b) for his ID. § 87(2)(b) asked PO Christian Lopez why he needed his ID. PO Christian Lopez again asked for § 87(2)(b) ID, and § 87(2)(b) told PO Christian Lopez he would not give him his ID without an explanation of why he needed it. PO Christian Lopez then pointed his flashlight into § 87(2)(b) face, reached into § 87(2)(b) car and removed his wallet from the vehicle. He did not touch anything else in the car. § 87(2)(b) did not react or do anything because he didn't want to go to jail. He then looked through the wallet and removed § 87(2)(b) driver's license and chauffeur's license. The officers then returned to their car to run his ID. PO Christian Lopez was sitting in his car and PO Estharlin Lopez was standing by the cars' driver side. PO Estharlin Lopez was randomly pointing his flashlight at § 87(2)(b) face and flicking the light off and on at him. In his follow-up phone statement (see Board Review #9), § 87(2)(b) specified that PO Estharlin Lopez flicked the light at his eyes three times in 30 to 40 second spurts. § 87(2)(b) (see Board Review #8) noted that he still did not know why he had been stopped and decided to call the NYPD because he was being harassed. After about twenty minutes, three additional officers arrived. At that time, PO Christian Lopez and his partner had completed the summonses, and they exited their vehicle and spoke to the additional officers. All the officers then went over to § 87(2)(b). As § 87(2)(b) began telling the new officers what was going on, he was interrupted by PO Christian Lopez who tried to give § 87(2)(b) his tickets. § 87(2)(b) described his demeanor as confused, and noted that he did not want to make physical contact with PO Christian Lopez, noting that he was upset and if he interacted with the officers, it would have been by "by force." § 87(2)(b) told PO Christian Lopez to put the summonses in his car. The officers then left and § 87(2)(b) who was admittedly crying and upset, proceeded to the stationhouse to file a complaint against them.

§ 87(2)(b) In a follow-up phone statement (see Board Review #2), § 87(2)(b) stated that he had received a letter in the mail saying that the C-Summons had been dismissed.

PO Christian Lopez (see Board Review #11) was driving on Stratford Road when he saw a 2015 Honda, with TLC plates, sitting idle in front of a hydrant. PO Christian Lopez decided to stop § 87(2)(b) for idling in front of a hydrant. After pulling up next to § 87(2)(b) passenger-side window, PO Christian Lopez decided to first conduct a wellness check because § 87(2)(b) appeared slumped over in his car. PO Christian Lopez asked § 87(2)(b) if he was good and § 87(2)(b) sarcastically replied that he was good. PO Christian Lopez informed § 87(2)(b) that the officers were just checking up on him and that his tone was unnecessary. He asked him why he was parked at the hydrant. § 87(2)(b) kept telling PO Christian Lopez to fuck off and keep driving, and PO Christian Lopez repeatedly asked him to move his car. PO Christian Lopez and his partner then got out.

Even though it was slightly dark outside, PO Christian Lopez took out his flashlight for his safety. PO Christian Lopez was trying to engage with § 87(2)(b) but he didn't want to hear it. They asked him why he was getting into it with uniformed officers. § 87(2)(b) became increasingly irate and started cursing at the officers from his car, telling them, "Fuck you guys. You guys have nothing better to do." He threatened to call his lawyer and began videotaping them. PO Christian Lopez told § 87(2)(b) that he could have just told the officers that he was a taxi driver and they would have been on their way, but now they were, "Here." § 87(2)(b) told the officers they were harassing him and told them to suck his dick. He was not complying and screaming, causing people to stop. PO Christian Lopez noted that a crowd of six to eight bystanders were gathering on the corner of Stratford Road. Although no one stood there and watched, the bystanders stopped a little bit from curiosity before continuing. No one from the crowd asked any questions, and PO Christian Lopez did not recall any cars slowing down. He noted that it was a slow block and generally did not have a lot of traffic on it. PO Christian Lopez noted that this crowd, coupled with the cursing, led him to decide to issue § 87(2)(b) a summons for disorderly conduct.

PO Christian Lopez asked § 87(2)(b) one more time to leave, but he replied that he was there to make money and waiting for a call. PO Christian Lopez then decided to issue § 87(2)(b) a summons for the hydrant and another summons for disorderly conduct, in lieu of arrest. PO Christian Lopez asked § 87(2)(b) if he had a license to operate the vehicle, and he replied he did, but did not want to prove it to him. PO Christian Lopez asked § 87(2)(b) multiple times for his ID, but he continued to refuse to comply. PO Christian Lopez thought there must have been a reason that § 87(2)(b) didn't want to show his ID, and noted that he also wanted the license for his safety, in case § 87(2)(b) had an open warrant or was a known perpetrator in the precinct. PO Christian Lopez asked § 87(2)(b) to come out of his car, but he refused. PO Christian Lopez stated that § 87(2)(b) window was down. He told § 87(2)(b) that he was going to receive a summons, and he knew that § 87(2)(b) had his license on him. § 87(2)(b) was still being irate

and belligerent, so PO Christian Lopez reached in and grabbed § 87(2)(b) wallet from his dashboard. He then opened the wallet, took out § 87(2)(b) ID and TLC license and handed the wallet back to him. PO Christian Lopez reached in and grabbed the wallet because § 87(2)(b) was refusing to give him his ID, and he didn't want to stand there all night waiting for him to give him the wallet. PO Christian Lopez added that he wanted to issue § 87(2)(b) a summons and not arrest him and if he had not received § 87(2)(b) ID he would have had to arrest him and bring him to the precinct.

He then went back to his vehicle and ran § 87(2)(b) ID. During this time, PO Estharlin Lopez was initially with § 87(2)(b) and then with him in the RMP. He did not know if PO Estharlin Lopez had taken out his flashlight. At some point, § 87(2)(b) called 911 on PO Christian Lopez and his partner. He was not aware of this until PO David Nunez and PO Felix Melendez of the 70th Precinct arrived as he was writing the summonses. He explained that § 87(2)(b) had been stopped for being at a hydrant and then had become belligerent. PO Christian Lopez then finished writing the summonses and gave them to § 87(2)(b) who refused to take them. He was still cursing at the officers. PO Christian Lopez placed the summonses in the open window on § 87(2)(b) drivers' seat. The officers then left.

PO Estharlin Lopez (see Board Review #12) testified that he and PO Christian Lopez were conducting routine patrol when they saw a vehicle parked at a fire hydrant with an individual slumped over the steering wheel. It did not look normal to them so they decided to conduct a wellness check. PO Estharlin Lopez could tell from far away that the car was a taxi cab and when they got closer, he saw the car was idling and it had TLC plates. PO Estharlin Lopez noted that any vehicle, including taxis, standing in front of a hydrant were illegally parked. The officers pulled their car next to § 87(2)(b) passenger side and honked several times. At first § 87(2)(b) refused to acknowledge them, and then eventually rolled down his window. PO Christian Lopez asked § 87(2)(b) how he was doing, and immediately, he became irate. He began cursing at the officers, saying, "Why are you fucking harassing me? Why are you bothering me?" The officers explained to § 87(2)(b) that he was illegally parked in front of a hydrant and slumped over a wheel so they wanted to make sure he was okay. He was being loud and disrespectful so they decided to conduct a car stop.

PO Christian Lopez and PO Estharlin Lopez exited the vehicle and PO Christian Lopez approached the driver side. PO Christian Lopez asked § 87(2)(b) about three times for his ID. § 87(2)(b) was still acting irate and saying, "No, fuck you, I'm not going to give you anything." At this point his driver's window was open and § 87(2)(b) placed his wallet on the dashboard, saying "I'm not going to give you shit." PO Christian Lopez asked § 87(2)(b) again for his ID and PO Estharlin Lopez told § 87(2)(b) that if they did not get his identification, they would have to take him to the precinct to verify who he was because they could not issue him a summons without that information. § 87(2)(b) again replied, "Fuck you, I'm not giving you shit." At that point PO Christian Lopez grabbed the wallet from the dashboard and took out § 87(2)(b) license and handed him back his wallet. § 87(2)(b) was still cursing and saying that they were harassing him. The officers then returned to the RMP. PO Christian Lopez was sitting in the vehicle and writing the summons, but because § 87(2)(b) was so irate, PO Estharlin Lopez decided to stand outside the RMP with his flashlight facing the individual in case § 87(2)(b) made any furtive

movements. He noted that he did not intentionally point it at § 87(2)(b) eyes or blink his flashlight at him and added that his flashlight was 1000 Lumens and very bright.

PO Christian Lopez issued § 87(2)(b) two summonses. One was for illegally parking at a hydrant and the other one was for disorderly conduct. PO Estharlin Lopez stated that the officers decided to issue § 87(2)(b) a disorderly conduct summons after § 87(2)(b) repeatedly refused to give them his ID and was cursing and yelling at them. PO Estharlin Lopez noted that § 87(2)(b) was very loud and they were on a very residential and peaceful block. People were turning on their lights and looking out their windows to see what the commotion was about. PO Estharlin Lopez also noted some people who were regularly walking by also stood for a few seconds before moving on. He noted that a crowd did not form. After PO Christian Lopez gave § 87(2)(b) the summonses, he continued cursing and yelling at the officers as they left.

VTL §4-11(a)(2) states that no operator of a taxi, while awaiting employment shall stand his/her vehicle in any street except in front of fire hydrants where standing or stopping is not prohibited by signs or rules, provided that the operator remains in the operator's seat ready for immediate operation of the taxi at all times . . . and provided further, that the operator shall immediately remove the taxi from in front of the fire hydrant when instructed to do so by any member of the police, fire, or other municipal department acting in his/her official capacity (Board Review #13).

§ 87(2)(g)

[REDACTED]

It is therefore recommended that **Allegations A and B** be closed as ***Unsubstantiated***.

P.G. 209-09 states that when issuing a summons returnable to the Traffic Violations Bureau or Criminal Court, officers should request that violator show proof of identity and residence. If doubt concerning identity exists, officers may remove the violator to command for investigation (see Board Review #14).

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

It is therefore recommended that **Allegation C** be closed as *Exonerated*.

P.G. 203-09 states that when engaging in public contact, officers must be courteous and respectful (see Board Review #15).

§ 87(2)(g)

It is therefore recommended that **Allegation D** be closed as *Unsubstantiated*.

PL §240.20(a)(1) states that a person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoying or alarm, or recklessly creating a risk thereof: he engages in fighting or in violent, tumultuous or threatening behavior (see Board Review #16). In *People v. Square*, 872 NYS 2d 693 (2008), the court in its analysis of PL §240.20(1) stated that, “The mere expression that one feels aggrieved by the police—even when uttered in a loud voice—cannot constitute an offense . . . the gravamen of disorderly conduct is conduct that provokes, or risks provoking a ‘breach of peace’ or ‘public disturbance. . .’ In deciding whether an act carries public ramifications, courts are constrained to assess the nature and number of those attracted, taking into account the surrounding circumstances, including, of course, the time and the place of the episode under scrutiny” (see Board Review #17).

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation E** be closed as ***Substantiated***.

Squad: 8

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date